

American Residential Services LLC (2009) 175 Cal.App.4th 785, 804-807. Mr. Serrano attests that he has given a general release of claims, but identifies no additional claims of value that he had. He was actively involved in the case and estimates that he spent at least 18 hours of time on it. He also is concerned that his role in this case could affect his future employment prospects. Ms. Rodriguez submits a similar declaration, estimating that she spent 16.5 hours on the case. All things considered, the representative payments are approved in the amount of \$7,500 each.

D. Conclusion

The Court finds that the proposed settlement is fair, reasonable, and adequate, and approves it. **The motion is granted.**

Counsel are directed to prepare an order reflecting this tentative ruling, and the other findings in the previously submitted proposed order. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented, which shall be set in consultation with the Department Clerk. **Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.**

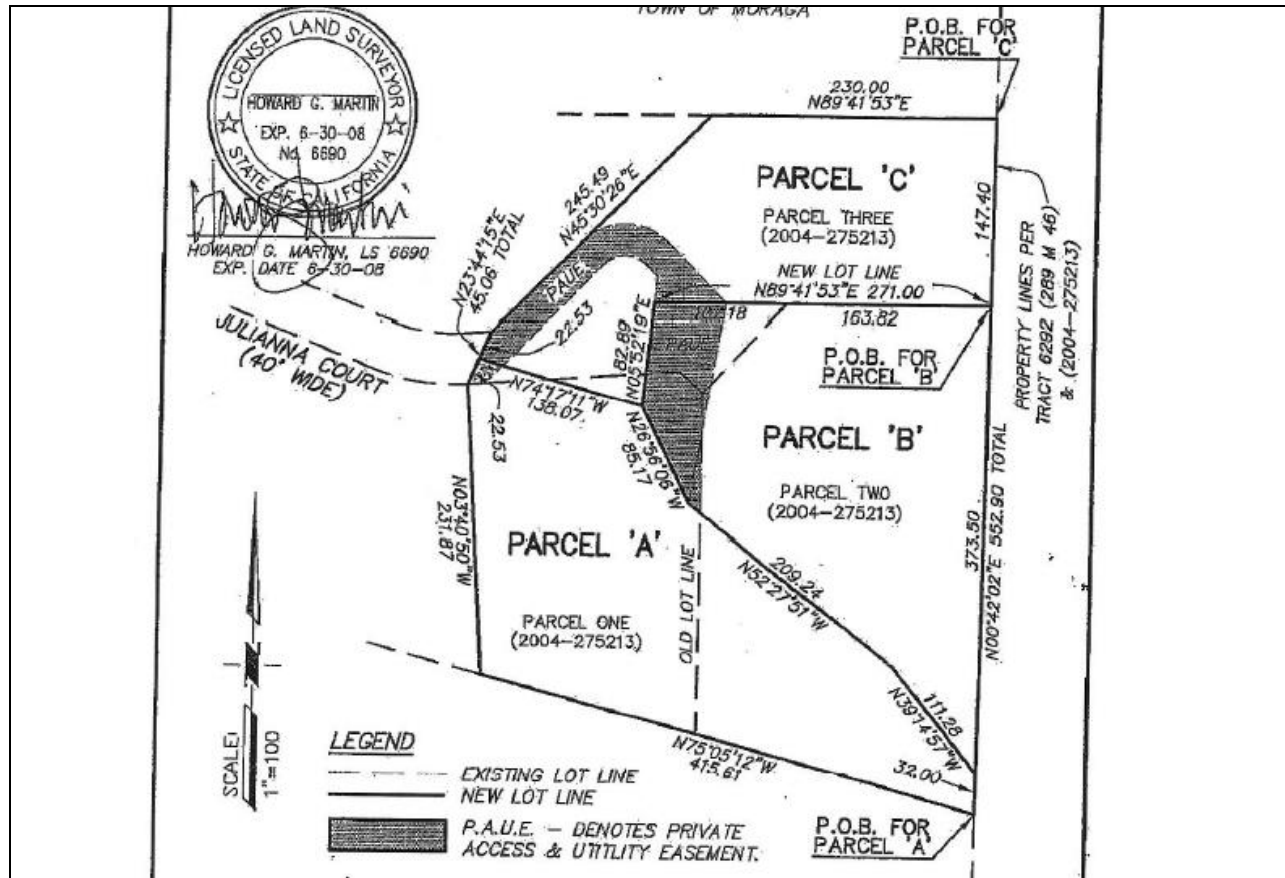
10. 9:00 AM CASE NUMBER: C24-02677
CASE NAME: AMERICAN MLB FEDERAL INVESTMENTS VS. SHERI KELLEHER
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: KELLEHER, SHERI
TENTATIVE RULING:

The demurrer, filed by defendants Sheri Kelleher and Paul Crinks, is **overruled**, as discussed below. **Defendants shall file their answer on or before January 5, 2026.**

I. Factual Background

The complaint here involves quiet title claims by plaintiffs to an easement over the properties of demurring defendants, whose properties are within the boundaries of defendant Sanders Ranch HOA. Plaintiffs' property is "immediately adjacent to, and east of the Sanders Ranch subdivision, in the town of Moraga, California." (Complaint, ¶14.)

Plaintiffs' property was previously held in common ownership with the properties of moving defendants and other properties in the HOA. At one point, in 2006, then-owner of plaintiff's property, "Roberts," also owned parcels A, B, and C, depicted in the drawing below (from Exhibit F to Complaint).



Roberts conveyed Parcels B and C, but reserved rights to access plaintiffs' property, which is not depicted in the above drawing and is east of the depicted area. At the time of the conveyance, in 2006, Roberts and the new owners of Parcel B and Parcel C entered into an express easement agreement ("driveway agreement") which provided for Roberts' access over Parcels B and C to his own Parcel A, but also to his other property beyond the depicted area, which he had not yet purchased, but which parties anticipated Roberts would purchase. (Complaint, Ex. F.)

Specifically, the language in the driveway agreement states, "As Roberts is expected to construct on single-family residential dwelling on the property *located to the east of the Roberts property*, the Roberts Driveway easement granted herein is for the purpose of providing ingress and egress rights and utility service for the benefit of property that contains one single-family residential dwelling and for such uses as are associated or compatible with Property containing one single-family residential dwelling."

Plaintiffs allege this confers the status of a dominant tenement on their property, which Roberts purchased in 2012 from East Bay MUD (see Complaint, Ex. G) and plaintiffs purchased from Roberts in March of 2024. (Complaint, ¶123, Ex. G.) Plaintiffs filed the complaint on October 7, 2024, alleging four causes of action with the following titles: (1) Quiet Title to Easement by Necessity, (2) Declaratory Relief – Existence of Easement by Necessity, (3) Quiet Title – Prescriptive Easement, and (4) Quiet Title –Easement. Upon review, the fourth cause of action is based on a theory of an express deeded easement pursuant to the Driveway Agreement.

After meeting and conferring with plaintiffs, as required by Code of Civil Procedure, section 430.41, defendants filed this demurrer pursuant to Code of Civil Procedure section 430.10, subdivision (e), targeting the fourth cause of action. (See Declaration of Karl J.F. Runft in Support of Demurrer.) Plaintiffs oppose the demurrer.

II. Evidentiary Matters

In support of the demurrer, defendants request judicial notice of three documents: (1) a purportedly recorded 2018 deed of “Parcel A” to Ewert, (2) a “Termination of Common Driveway Construction and Maintenance Agreement,” purportedly recorded in 2011, and (3) a purported 2021 grant deed of Parcels A, B, and C from Dougals and Julie Ewert as trustees to defendants.

Plaintiffs object. They argue that the documents are not authenticated or self-authenticating. They also argue that the Court cannot take notice of the legal effects of a document, even if the fact that the document exists is noticeable.

“Judicial notice is the recognition and acceptance by the court, for use by the trier of fact or by the court, of the existence of a matter of law or fact that is relevant to an issue in the action without requiring formal proof of the matter.” (*Poseidon Development, Inc. v. Woodland Lane Estates, LLC* (2007) 152 Cal.App.4th 1106, 1117, internal citations omitted.) A court may take judicial notice of something that cannot reasonably be controverted, even if it negates an express allegation of the pleading. (*Ibid.*) This includes recorded deeds. (*Ibid.*)

Setting aside the technical failings of the documents, which plaintiffs point out are not certified copies or otherwise authenticated, the documents do not determine the outcome of the claim for an express easement.

Here, the facts sought to be established by judicial notice involve whether parcels A, B, and C were ever under common ownership and, if so, whether the owners of these parcels agreed to terminate a driveway agreement that affects these three parcels. These facts are not critical to the issue before the Court, which is whether *plaintiffs’* property is, in fact, a dominant tenement described in the driveway agreement. If plaintiffs’ property is such dominant tenement, plaintiffs’ consent, or that of their predecessors, would be required to terminate the rights associated with the driveway agreement.

The documents provided by defendants do not address that issue and are therefore irrelevant. Accordingly, in addition to the technical issues identified by the plaintiffs, the request is **denied**.

III. Demurrer Standard

In reviewing the sufficiency of a complaint, all material facts properly pleaded are deemed admitted, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Allegations must be liberally construed by drawing reasonable inferences from the facts pleaded, and with a view to substantial justice between the parties. (Code Civ. Proc., § 452; *Flynn v. Higham* (1983) 149 Cal. App. 3d 677, 679.)

IV. Discussion - Fourth Cause of Action

Defendants demur to the fourth cause of action on the basis that the doctrine of merger, as well as a recorded “Termination of Common Driveway Construction and Maintenance Agreement,” which defendants contend terminated the easement over which plaintiffs seek rights here.

Plaintiffs argue that, because the termination document was only executed by the owners of

the servient tenements, there was no termination of the driveway agreement with respect to their property. Further, because there was no common ownership of plaintiff's property as well as the servient properties, the doctrine of "merger" does not apply.

Defendants' reply contends that the driveway agreement's terms are unambiguous and should be construed to deny plaintiffs' property any status as a dominant tenement. The question is not so unambiguous as defendants suggest. The driveway agreement specifically permits access to what appears to be the very property plaintiffs now own. The correct interpretation of the agreement is an evidentiary determination not appropriate for determination on demurrer, as highlighted by defendants' argument about the subjective intention of Roberts in making the driveway agreement. (Reply, 3:8-11 [Roberts "entered into the Driveway Agreement with the belief that Roberts would maintain ownership over Parcel A"].)

11. 9:00 AM CASE NUMBER: C24-03268

CASE NAME: GILBERT BIGGS VS. CALIFORNIA GRAND CASINO

***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF'S FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS**

FILED BY: CALIFORNIA GRAND CASINO

TENTATIVE RULING:

Defendant brings three motions to compel further responses to discovery: (1) concerning a Request for Production of Documents; (2) concerning Special Interrogatories; and (3) concerning Form Interrogatories. In the underlying action, plaintiff alleges that he was injured on defendant's property. The matter originally was set to be heard on October 30, 2025, but was continued to this date on the Court's own motion.

Defendant served the First Set of Requests for Production of Documents on February 25, 2025.

Defendant served Special Interrogatories on plaintiff on February 25, 2025. Defendant served Form Interrogatories on March 28, 2025. Defendant granted a short extension, and plaintiff responded to all three discovery requests on May 1, 2025. All three responses were unverified.

Defendant sent a meet and confer letter addressing all three responses on May 13, 2025, and counsel conferred by telephone on May 15, 2025. There is some dispute as to whether plaintiff agreed to supplement by May 30, 2025, or at an unspecified date when more information was available. Plaintiff's counsel attests that he "advised defense counsel that Plaintiff would provide supplemental responses once the remaining medical records were received from Plaintiff's medical providers." (Balogh Decl, par. 4.) Defense counsel's email message of May 16, 2025, states that plaintiff "agreed to supplement your client's discovery responses within two weeks, by Friday, May 30, 2025." The message further asked that counsel to "please let me know if I've misstated anything." Nothing in the record indicates that counsel did so. Accordingly, the Court concludes that defense counsel engaged in a satisfactory meet and confer process, and that plaintiff's counsel had agreed to supplement the responses by May 30, 2025.

An unverified response is tantamount to no response at all. (*Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636.)